On the Similarities between the Hexagrams Qian, Shihe, and Zhongfu in the *Book of Changes* and Modern Rule of Law Thought

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Abstract: Through the elucidation of the hexagrams Qian, Shihe, and Zhongfu in the *Book of Changes*, as well as an overview of modern rule of law thought, it is found that these hexagrams share commonalities with modern rule of law principles: The Qian hexagram's lines—nine in the second place (dragon appearing in the fields, understanding drought conditions), nine in the fifth place (dragon flying in the sky, bringing clouds and rain), and nine at the top (arrogant dragon, acting on private desires)—correspond to the "hearing opinions" and "avoiding bias" elements of the due process principle. The use of nine, which shows the relationships among the six lines, indicates that the dragons in the second and fifth places act actively but are constrained by other lines and cannot act as the head; this corresponds to the principle of administration according to law, whereby administrative power is controlled by legislative and judicial powers. In the Shihe hexagram, the light punishment for minor offenses in the initial nine, heavy punishment for serious offenses in the top nine, and the cautious use of torture in the six in the second place embody the principle of proportionality between crime and punishment; these three lines correspond to the "means proportionate to ends" aspect of the proportionality principle. The six in the third, nine in the fourth, and six in the fifth lines of Shihe form the Kan trigram; the nine in the fourth harbors inner sincerity and finds the golden arrowhead, while the six in the third and six in the fifth face similar situations and encounter arrow poison—these lines correspond to the "distinguishing truth from falsehood" and "relevant considerations" of the rationality principle. The central theme of the Zhongfu hexagram is sincerity (trust/faith), with emphasis on hierarchical relationships (such as between ruler and subjects), which corresponds to the trust protection principle whereby the government protects individuals' legitimate expectations. Connecting the hexagrams of the *Book of Changes* with modern rule of law thought has enlightening significance for the current construction of the rule of law.

Keywords: Qian; Shihe; Zhongfu; Rule of Law

I. Introduction

The rule of law means the rule of law (Rule of Law): the government governs the people through law, while the government itself is also bound by law. Modern rule of law thought mainly includes the following principles: due process, administration according to law, proportionality and rationality, and trust protection.[1]

Modern rule of law thought originates from Western cultural traditions and began with English legal practice. In the 1723 Bentley case, the Court of King's Bench held that hearing the other party's defense is an eternal law of God, because the Book of Genesis records that God listened to Adam's defense before punishing him and expelling him from the Garden of Eden.[2]

The *Book of Changes* is vast and comprehensive, encompassing the Way of Heaven, the Way of Earth, and the Way of Humanity; the rule of law belongs to the Way of Humanity. Mr. Fu Libai, based on the Song hexagram, argued that the principle of good faith in a legal sense already existed in the Western Zhou period. He also explained the meaning of good faith in the line statements of the Zhongfu hexagram.[3] Actually, Zhongfu not only means good faith but also benevolence and virtue. For example, the *Xiang* commentary's "discussing cases and delaying executions" refers to the ruler exercising benevolence to rescue criminals, rather than the good faith in litigation found in Roman law.

To date, there has been no comprehensive academic attempt to connect rule of law thought with the texts of the *Book of Changes*. This article, based on interpretations of the Qian, Shihe, and Zhongfu hexagrams from historical *Book of Changes* literature, presents the author's personal understanding of these hexagrams and examines their commonalities with modern rule of law thought.

II. The Qian Hexagram and the Principles of Due Process and Administration According to Law

(1) Elucidation of the Qian Hexagram

Qian: Origin, Prevalence, Benefit, Perseverance. Qian symbolizes firmness and strength, taking the image of the dragon as an analogy for the ruler. The *Book of Changes* emerged during the transition from the Shang to Zhou dynasties in the Yellow River basin, where the ancients' lives depended heavily on agriculture, and drought was a severe natural disaster. In the ancients' conception, the dragon's practical function was precisely to bring clouds and rain. The ruler, like the dragon, is firm and strong; the exercise of power is to safeguard the people's livelihood. The *Shuogua* says: "Qian is the ruler, Kun is the multitude." The Qian-Kun relationship reflects the relationship between ruler and people, that is, between power and rights.

Initial nine: Submerged dragon, do not act. The dragon is submerged deep in the water, concealing its brilliance and waiting for the right time; it should not come out and act. The superior person at this time is not passively waiting but actively planning. Gan Bao comments: "Yang located under three springs, sagely virtue among the foolish and vulgar—this is the line of King Wen in Youli."[4] King Wen deduced the *Book of Changes* in Youli, making ideological preparations for the great undertaking of overthrowing the Shang.

Nine in the second place: Dragon appearing in the fields, beneficial to see the great man. Gan Bao points out: "The second is on the ground; the field is on the surface of the earth and bears the work of humans."[5] The field is the land people cultivate. The dragon appears in the fields for one purpose only: to understand the drought conditions. The necessary way to understand drought is to listen to people's opinions. The silk manuscript *Er San Zi* understands it this way: "Humble and modest, easy to inform; approaching the people, easy to encounter. This is the perseverance of the sagely superior person, measuring what is suitable for the people, hence 'beneficial to see the great man.'"[6] The ruler humbly approaches the people; it is beneficial for the people to see the ruler.

Nine in the third place: The superior person is diligent all day, at evening vigilant as if in danger, no blame. The superior person strives hard during the day and rests and guards against danger at night, without fault. Regarding "at evening vigilant as if in danger," most commentators after Wang Bi interpret it as fearing danger at night.[7] However, the silk manuscript commentaries often treat "at evening vigilant as if in danger" as the counterpart to "diligent all day." For example, the *Zhong* says: "'The superior person is strong all winter day'—this is activity. 'At evening vigilant as if in danger, no blame'—this is rest."[8] The *Er San Zi* says: "The superior person's timely affairs are like galloping; thus 'the superior person is diligent all day.' When the time ends, he stops to settle the body; settling the body leads to stillness, hence 'at evening muddy as if in danger, no blame.'"[9] The *Huainanzi* is consistent with the silk manuscript commentaries.[10] The silk manuscript commentaries and the *Huainanzi* were composed before Emperor Wu of Han proscribed the hundred schools, so they may be closer to Confucius's original meaning than later commentators, although Confucius's interpretation may not fully match the ancient *Zhouyi* text.

Nine in the fourth place: Perhaps leaping in the abyss, no blame. The dragon is hidden deep in the water and leaps out at the right time to test its flight, without blame. Regarding the "perhaps" in "perhaps leaping in the abyss," most after Wang Bi interpret it as "doubt."[11] This meaning does not appear in the silk manuscript or transmitted commentaries. The *Zhong* says: "Perhaps leaping in the abyss—concealment; movement within stillness. Constant leaping leads to misfortune; the superior person leaps to manifest himself and completes the Way by himself. The superior person does not forget reaching in poverty, nor safety in security; he dwells in stillness and forms patterns, bringing great fortune and splendor."[12] The *Wenyan* says: "Going up and down without constancy is not for evil; advancing and retreating without fixed rule is not to leave the group. The superior person advances virtue and cultivates achievement, wishing to seize the timely moment, hence no blame." Thus, the *Zhong* and *Wenyan* interpret "perhaps" as a choice or timing. Regarding "leaping" in "perhaps leaping in the abyss," the *Wenyan* explains it as "testing oneself," and Li Guo as "practicing flight before flying."[13] Gan Bao considers King Wu's troop review at Mengjin, observing the situation and then retreating, as an appropriate example of "perhaps leaping in the abyss."[14]

Nine in the fifth place: Flying dragon in the sky, beneficial to see the great man. The dragon flies into the sky; it is beneficial for the people to see the great man. The nine in the second and nine in the fifth not only correspond in line position, but their line statements are closely related: the latter half is identical, and the first half is intimately connected. The second place is "bright and fond of the Way," while the fifth is "bright and reaching,"[15] indicating a relationship of means and end, process and result between them. If the second place is investigating drought conditions, then the fifth place is bringing clouds and rain. Hu Bingwen long ago pointed this out: "The *Wenyan*'s 'clouds move and rain falls, and the world is at peace' refers to the affairs of 'flying dragon in the sky.'"[16] The *Wenyan* passage "similar sounds respond to each other, similar qi seek each other; water flows to the wet, fire goes to the dry, clouds follow the dragon, wind follows the tiger; what is based on Heaven draws near what is above, what is based on Earth draws near what is below—each follows its kind" can also be seen as the ancients' explanation

of rainfall. The ruler should be like the dragon in bestowing benefits on the world; thus the *Er San Zi* says: “When the superior person is above, the people receive his benefits, and the worthy are not obscured.”[17]

Top nine: Arrogant dragon has regret. When the dragon flies too high, there is regret. Once the dragon has fulfilled its mission of bringing rain in the fifth place, any further action is no longer to meet the people’s needs but to indulge its own nature and satisfy its own desires. Thus the *Zhong* says: “Arrogant dragon has regret means excess; arrogant dragon has regret—high and contending; the loss of firmness; one who moves and cannot be still.”[18] If the ruler in a high position detaches from the people and ignores their needs, he will lose his position. Thus the *Er San Zi* says: “This speaks of one who is above and arrogant toward those below; there has never been one who is arrogant toward those below and does not perish. The sagely person’s establishment of correctness is like climbing a tree: the higher one climbs, the more one fears those below.”[19] The *Zhong* also says: “What is high above and cut off below will not long stand firm and will have many faults.”[20] The *Wenyan* says: “Noble but without position, high but without the people, the worthy in low positions without support—thus movement brings regret.” The *Wenyan* explanation is consistent with the silk manuscript commentaries.

Use of nine: Seeing a flock of dragons without a head—auspicious. Summarizing the six lines, a flock of dragons appears without one acting as head—this is auspicious. A flock of dragons without a head is a beautiful, ideal order, what the *Wenyan* calls the “Heavenly norm” and “the world is governed.” The question is whether this order is formed by self-discipline or external restraint. Self-discipline includes yielding the good, as the *Zhong* says: “A flock of dragons without a head—cultured and sagely. This is called yielding the good.”[21] Self-discipline also includes great impartiality and selflessness, as the *Shuoyuan* says: “The *Changes* says ‘without a head, auspicious’—this is the utmost impartiality of the ruler.”[22] Li Dingzuo considers the use of nine to refer to the rule of the Three Sovereigns and Five Emperors: “This corresponds to the time of the Three Sovereigns and Five Emperors, when they practiced yielding and non-action, and the world was governed.”[23] As for external restraint, the *Xiang* says: “Use of nine: heavenly virtue; one cannot act as head.” Here “cannot” indicates limitation, which should come from the other dragons or even the mare. The *Tuan* says: “Leading forth the many things, the myriad states are all at peace.” Wang Bi annotates this as “the myriad states are thereby at peace, each having its own ruler,”[24] referring to enfeoffing feudal lords. Gao Heng interprets the use of nine as “the feudal lords governing their states separately, with no Son of Heaven among them,” taking “without a Son of Heaven” to explain “without a head.”[25]

(2) Qian’s Nine in the Second, Nine in the Fifth, and Top Nine and the Due Process Principle

The due process principle originates from the British natural justice principle and includes two core elements: the authority must listen to the opinions of the parties concerned, and must have no personal interest in the matter to be decided. For example, when the government levies taxes on the people, it must obtain the consent of the people or their representatives, and taxation is solely to realize the people’s interests;[26] when the government deprives an individual of liberty or property, it should listen to the individual’s defense, and the decision should be

made by peers according to national law;[27] when the authority imposes a fine on an individual, it should have no economic interest and must not be judge in its own case;[28] when the authority deprives an individual of office, an opportunity for defense should be given.[29] If the authority violates these requirements, the decision is invalid. The natural justice principle evolved into the due process principle, which not only added procedural elements such as giving reasons and information disclosure, but also expanded the objects protected by due process to include substantive elements. Nevertheless, hearing and avoiding bias remain the most important core elements of the due process principle.

In the Qian hexagram, the first half of the line statements for the second and fifth places describes the image, and the second half describes human affairs. For the dragon to bring clouds and rain and bestow benefits on the world, it must first understand where and to what extent drought exists; therefore, it must appear in the fields to investigate on the spot—hence “dragon appearing in the fields.” After understanding the drought conditions, the dragon flies into the sky and brings clouds and rain according to the drought, bringing blessings to the people of the world—hence “flying dragon in the sky.” With sufficient rain, the people enjoy ample food and clothing, and the world will be at peace. The ruler emulates “dragon appearing in the fields” by humbly approaching the people when listening to public opinion, learning from them, and seeking their views to understand their needs and voices. The ruler emulates “flying dragon in the sky” by acting in accordance with public opinion solely for the benefit of the people, without considering personal gain.

In the second and fifth places, the dragon listens to the people’s statements about drought conditions before bringing rain, and the rain is solely to meet the people’s needs; the ruler listens to public opinion before making decisions, and the decisions are made entirely for the people’s benefit and are welcomed by the people. In the top nine, however, the dragon does not listen to the people’s opinions and continues to act not for the people’s benefit but based on its own desires, soon leading to regret; the ruler ignores the people’s needs and seeks personal interests, soon losing power. Therefore, the ideas embodied in the second place, fifth place, and top nine of Qian are in common with the due process principle.

(3) The Use of Nine in Qian and the Principle of Administration According to Law

Administration according to law is a basic principle of German administrative law. Its connotation is that administrative acts must obtain legislative authorization and be subject to judicial review; administrative acts must not only comply with legal rules enacted by parliament but also with legal principles established by courts. French administrative law uses the term “legality,” and British administrative law uses “ultra vires invalidity”; their connotations are consistent with administration according to law. In essence, administration according to law means using legislative and judicial powers to control administrative power. The idea of controlling power was fully elaborated as early as Montesquieu’s *The Spirit of the Laws*. Montesquieu not only used the English polity as a model to explain horizontal power relations but also used the Lydian republic as an example to explain vertical power relations.[32]

The six yang lines of the Qian hexagram take the image of six dragons, analogous to six rulers. The *Zhong* says: “The dragon moves without waiting for light and ascends without steps; the sage is similar to the dragon—how could there be no friends in good fortune?”[33] The similarity between the dragon and the ruler lies in the powerful capability based on the quality of firmness and strength; thus the six yang lines symbolize six powers. Since the Qian hexagram is formed by doubling the Qian trigram (lower and upper), these six powers can be divided into lower and upper groups, each with three powers. In the lower Qian’s three lines, each has a different role: the initial nine conceals brilliance and waits for the time; the second listens to public opinion; the third is diligent and cautious. In the upper Qian’s three lines, each also has a different role: the fourth practices at the right time; the fifth bestows benefits on the world; the top has regret from excess. The initial nine and fourth are preparation (thinking of methods and preparing plans); the second and fifth are action (listening to opinions and making decisions); the third and top are reflection (persisting in what is correct and admitting errors).

Preparation, action, and reflection are the three necessary stages for an individual to achieve success, and also the three basic powers for any organization to handle affairs: in company law, company powers are divided into decision-making, operation, and supervision; in organizational charters, organizational powers are divided into council, execution, and review; in national constitutions, state powers are divided into legislative, executive, and judicial (the National People’s Congress holds legislative power, the State Council holds executive power, and the Supreme Court holds judicial power). The powers symbolized by the initial nine and fourth belong to decision-making, council, or legislative-type powers; those by the second and fifth belong to operation, execution, or administrative-type powers; those by the third and top belong to supervision, review, or judicial-type powers.

If the upper and lower Qian are regarded respectively as the central government and local governments, the six yang lines of the Qian hexagram not only display horizontal power relations but also vertical power relations. China’s Supreme Court can conduct second-instance or retrial review of judgments by local higher courts, indicating that judicial power is supervisory in the vertical dimension.

Under the feudal enfeoffment system, the Son of Heaven is the head of the world, and the feudal lords are heads of their states, with the Son of Heaven higher than the lords as the supreme head; this does not conform to “a flock of dragons without a head is auspicious.” Under a republican system, the various powers check one another, and no power holds the supreme position; this conforms to “a flock of dragons without a head is auspicious.”

Summarizing the six yang lines: the nine in the second is the central line of the lower trigram and is restricted by the initial nine and third; the nine in the fifth is the central line of the upper trigram and is restricted by the fourth and top; moreover, the third is in enemy correspondence with the top and is restricted by the top. Under a republican system, the principle of administration according to law means that administrative power is controlled by legislative and judicial powers; given that local judicial power is subject to central judicial power, local

administrative power is ultimately also subject to central judicial power. Therefore, the thought of the use of nine is in common with the principle of administration according to law.

III. The Shihe Hexagram and the Principles of Proportionality and Rationality

(1) Elucidation of the Shihe Hexagram

Shihe: Prevalence; beneficial to use in criminal cases. The image of the Shihe hexagram has two perspectives. First, the six in the fourth of Yi changing to nine in the fourth forms Shihe; Shihe means biting and joining a solid object, with the nine in the fourth being the solid object being bitten. Many commentaries have this interpretation, for example, the *Tuan*'s "there is something in the jaws, called Shihe," the *Xugua*'s "he means joining," and the *Zagua*'s "Shihe means eating." Li Dingzuo clearly identifies the nine in the fourth as the object in the jaws.[34] Second, Shihe has Zhen below and Li above, indicating thunder and lightning joining, power and clarity added together. The *Tuan* says: "Firm and yielding are distinguished, movement and clarity; thunder and lightning join and are manifest." These two perspectives both point to "using in criminal cases." The former is like Wang Bi's statement: "There is a gap and fault; biting and joining them is how to connect. Punishment overcomes to connect—this is the benefit of criminal cases."[35] Here "gap and fault" refers to the nine in the fourth. The latter is like Song Zhong's: "The Way of using punishment combines power and clarity. If there is power without clarity, there may be excess and abuse; if there is clarity without power, one cannot subdue things."[36] Cheng Yi's explanation of "using in criminal cases" approaches modern rule of law thought: Criminal cases are for investigating truth and falsehood, and for prevention and punishment after discovering facts and offenses.[37]

Among the six lines of Shihe, the initial nine and top nine concern determining guilt and sentencing, which today belong to the authority of judicial organs; the middle four lines concern investigating criminal facts, which today belong to the authority of police and procuratorial organs. The nine in the fourth line is the key of the Shihe hexagram; the golden arrowhead symbolizes criminal facts—it is both the target of investigation by the middle four lines and the basis for determining guilt and sentencing by the initial nine and top nine.

Initial nine: Wearing a cangue that covers the toes, no blame. At the beginning, the offense is minor; wearing fetters that cover the toes prevents walking, but one can change after the fault. "Wearing a cangue" only restricts freedom of movement, hence the *Xiang* says: "does not walk." If the punished person accepts the lesson and changes in time, there is no disaster; thus the *Xici* says: "A small punishment and great warning—this is the blessing of the petty person."

Six in the second place: Biting skin and covering the nose, no blame. Biting the tender surface flesh, exerting too much force so the nose sinks into the flesh, but one can change after the fault. From the six in the second to the six in the fifth, the way of governing criminal cases is explained through biting animal flesh; biting animal flesh should start from the surface, and investigating criminal facts should start from interrogating the suspect. The Western Zhou

allowed torture but prohibited excessive use; thus Kong Yingda says: “Biting beyond the proper degree means using punishment too deeply.”[38]

Six in the third place: Biting dried meat, encountering poison; small regret, no blame. Biting dried meat and encountering arrow poison; small regret, no blame. Yu Fan says: “The third is inside the skin, hence called meat. Poison means arrow poison.”[39] Dried meat is baked or sun-dried animal flesh, very hard, corresponding to the third line’s yang position. The arrowhead used to hunt wild beasts carries poison; the arrowhead pierces the animal’s body, and the path it takes is stained with toxin, the toxin corresponding to the yin line.

Nine in the fourth place: Biting dried meat with bone, obtaining the golden arrowhead; beneficial to persevere through difficulty, auspicious. Biting dried meat attached to bone and discovering the metal arrowhead; beneficial to inquire about difficult matters, auspicious. “Fu” is meat attached to bone; the bone is hollow with tender marrow, corresponding to the fourth line’s yin position. The golden arrowhead is the metal arrowhead embedded in the beast’s bone during hunting; the golden arrowhead is firm and straight, corresponding to the yang line. The golden arrowhead is the target discovered by biting the animal flesh, analogous to the facts sought in investigating a case. Lu Ji says: “Although biting the fu is difficult, in the end one can extend one’s firmness and straightness.”[40] Handling difficult cases ultimately redresses wrongs and realizes justice. The *Zhouli* says: “To prohibit people’s lawsuits with two parties bringing bundles of arrows to court, then hear them. To prohibit people’s criminal cases with two instruments bringing hooks of metal; after three days, bring them to court, then hear them.” The items brought to the official by the parties in criminal and civil cases—hooks of metal and bundles of arrows—were influenced by this line.

Six in the fifth place: Biting dried meat, encountering poison; persevering in danger, no blame. (This is the silk manuscript *Zhouyi* version. The transmitted *Zhouyi* for Shihe’s six in the fifth reads: biting dried meat, obtaining yellow metal; persevering in danger, no blame.) The silk manuscript version is superior to the transmitted version for three reasons: First, the six in the fifth is a yin line in a yang position; dried meat is hard (yang position), arrow poison is insidious (yin line), while yellow metal and golden arrowhead are both metal (even if “yellow metal” is real gold, the hardness difference between gold and copper is not great) and have firm and hard characteristics, which cannot correspond to a yin line. Second, both versions have the judgment “no blame,” consistent with the six in the third; thus the premises for the six in the fifth and six in the third should be similar—the six in the third encounters poison, so the six in the fifth should also encounter poison, which is logical. Obtaining yellow metal and encountering poison have completely opposite imagery; if the six in the fifth obtained yellow metal, it should be “auspicious” like the nine in the fourth obtaining the golden arrowhead. Third, according to the transmitted version, the yellow metal might be hidden in the dried meat (what is the purpose of hiding gold in meat? Making someone swallow gold particles is not an effective way to harm); it might also be a reward from a superior (why does the six in the fifth obtain a reward by biting dried meat, while the six in the third does not?). These two explanations are clearly untenable. Takashima Tunzo’s interpretation of the silk manuscript “encountering poison” for the Shihe six in the fifth obtained in relation to the Jiawu naval battle is more reasonable: Japan encountered

the autocratic tyranny of the Qing; under a constitutional system, people view autocratic tyranny as institutional poison—this is understandable.

Top nine: How the cangue covers the ears—inauspicious. Accumulated evil is too much; the offense is extremely serious; wearing a cangue that covers the ears prevents receiving instruction, so extreme punishment may be applied—hence inauspicious. The severity of “how the cangue covers the ears” lies in the punished person being unable to be admonished or prevented; thus the *Xiang* says: “hearing is not clear.” Evil accumulates gradually until it is too great to cover or resolve, so only execution remains; thus the *Xici* says: “When evil accumulates it cannot be covered; when the crime is great it cannot be resolved.”

(2) Shihe’s Initial Nine, Top Nine, and Six in the Second and the Proportionality Principle

Proportionality thought has a long history and first appeared in the relationship between crime and punishment, manifested as the principle of proportionality between crime and punishment. Cicero pointed out in *On the Laws* that punishment should correspond to the offense.[41] Article 20 of the 1215 Magna Carta stipulates light punishment for minor offenses and heavy punishment for serious offenses. Montesquieu discussed the appropriate proportion between crime and punishment in *The Spirit of the Laws*.[42] Beccaria elaborated the principle of proportionality between crime and punishment in *On Crimes and Punishments*: the proportionality of punishment to crime, the restraint of punitive means, and the legitimacy of the purpose of punishment.[43] He also pointed out that torture is imposing punishment on a suspect.[44] German courts extended proportionality thought from the criminal law field to police administrative law and then to administrative law in general. In the 1958 Pharmacy Case, the German Constitutional Court reviewed the government’s unfavorable decisions toward individuals and summarized three elements of the proportionality principle: first, the government must balance individual rights and public interests—the more a government measure restricts basic rights, the stricter the restrictions it faces, requiring a more important public interest; second, the government must choose the measure that least restricts individual freedom; third, the government measure must be capable of achieving the legitimate public interest purpose.[45]

In the lines of the Shihe hexagram, the initial nine and top nine concern determining guilt and sentencing, focusing on means and ends. First, the initial nine involves a minor offense with little social harm, punished by detention restricting personal freedom; the top nine involves a serious offense with great social harm, punished by extreme penalty depriving the right to life. Compared with the initial nine, the top nine’s offense infringes more important public interests, so the punishment restricts more important individual rights—thus corresponding to the first element of the proportionality principle. Second, the initial nine adopts the mildest punitive method and does not use corporal punishments such as cutting off feet; the top nine only adopts the most severe punitive method when necessary, but the application of the death penalty is very cautious. Under the premise of realizing public interests, the initial nine and top nine adopt lighter punitive means as far as possible, imposing smaller restrictions on individual rights—thus corresponding to the second element of the proportionality principle. Third, the initial nine uses light punishment to educate the offender so that he does not reoffend, achieving

the purpose of special prevention; the top nine uses severe punishment to punish the offender himself and educate others to reform and avoid repeating the mistake, achieving the purpose of general prevention. The ultimate purpose of punishment is to prevent crime; both the initial nine and top nine achieve the purpose of preventing crime—thus corresponding to the third element of the proportionality principle.

Although the middle four lines all concern investigating criminal facts, the six in the second has a special position and significance compared with the other three: in the investigation stage, punishment is imposed on the suspect to obtain criminal facts. Since criminal facts have not yet been obtained, according to the modern presumption of innocence principle, punishment cannot be imposed on the suspect; however, ancient investigation techniques were limited, and using punishment to force the suspect to confess criminal facts (i.e., torture) was quite common. Nevertheless, torture was still subject to certain restrictions; investigators were not allowed to use excessive punishment—this corresponds to the requirements of the proportionality principle.

(3) Shihe's Six in the Third, Nine in the Fourth, and Six in the Fifth and the Rationality Principle

The rationality principle was developed by British courts in controlling government discretionary power. In the 1598 Rooke's Case, Chief Justice Coke held that when exercising discretion, the government must distinguish truth from falsehood, right from wrong, and reality from illusion, and cannot act on personal will or private feelings.[46] In the 1948 Wednesbury Case, Judge Greene not only proposed narrow unreasonableness but also summarized broad unreasonableness, which includes improper purpose, relevant and irrelevant considerations, and lack of good faith.[47] Among these, improper purpose is what Coke called "personal will and private feelings"; relevant and irrelevant considerations mean that before making a decision, the government should consider relevant factors and exclude irrelevant ones—in other words, treat different situations differently and treat similar situations the same.

In the middle four lines of Shihe, the six in the third, nine in the fourth, and six in the fifth form the Kan trigram. "Repeated Kan: there is sincerity; the heart is connected; action has merit." Combining the lines of repeated Kan, one can see: danger lies in the yin lines, sincerity in the yang lines, and action brings merit. Thus in Shihe, the six in the third and six in the fifth encounter danger, while the nine in the fourth harbors inner sincerity and achieves success.

The nine in the fourth bites dried meat with bone, which is very difficult, but obtains the metal arrowhead. The investigator harbors inner sincerity and is impartial and selfless, like the metal arrowhead—firm, straight, and upright—passing through difficulties and obstacles to finally find the criminal facts; this is consistent with the "good faith and proper purpose" of the rationality principle.

The six in the third and six in the fifth both bite dried meat and encounter arrow poison, without blame. Although the fifth is in the upper position and the third in the lower, identity and status are not always factors to consider. Beccaria advocated that punishment for nobles and

commoners should be the same; the yardstick for sentencing is the offender's harm to society.[48] Therefore, the six in the third and six in the fifth are in similar situations with consistent consequences; similar situations receive the same treatment—this corresponds to the "relevant and irrelevant considerations" of the rationality principle.

The six in the third and six in the fifth encounter arrow poison, while the nine in the fourth obtains the metal arrowhead. Arrow poison is insidious (yin, false); the metal arrowhead is firm, straight, and upright (yang, true). The investigator is cautious and distinguishes arrow poison from the metal arrowhead, i.e., distinguishes yin from yang and false from true—this corresponds to the "distinguishing truth from falsehood, right from wrong, and reality from illusion" of the rationality principle.

IV. The Zhongfu Hexagram and the Trust Protection Principle

(1) Elucidation of the Zhongfu Hexagram

Zhongfu: Pig and fish—auspicious; beneficial to cross the great river; beneficial to persevere. Like Shihe, the image of the Zhongfu hexagram has two perspectives. First, from the relationships among the lines: the nine in the second and nine in the fifth are both yang lines in central positions, and the six in the third and six in the fourth are both yin lines inside the hexagram—i.e., the *Tuan*'s "yielding inside and firm obtains the center." Second, from the relationship between the upper and lower trigrams: Dui below and Xun above, wind moving over the marsh; the superior person uses benevolence and trust to transform the world and save the people—i.e., the *Tuan*'s "trust then transforms the state" and the *Xiang*'s "Zhongfu: the superior person uses it to discuss cases and delay executions." Combining these two perspectives explains "beneficial to cross the great river, riding a wooden boat that is empty": hollowing out wood to make a boat enables it to carry people; the boat moving on water enables it to save people.

Regarding the hexagram statement "pig and fish—auspicious," the *Tuan* explains it as "trust reaches the pig and fish." Historical commentators offer varying explanations, among which two are popular: one is offering pig and fish as sacrifice; the other is that river pigs (porpoises) have trust. For the first explanation, pig and fish are modest offerings, but sacrifice emphasizes sincerity; the offering is merely formal, as Wang Yinzhi says: "Pig and fish are the thinnest of rituals, yet if there is inner trust and virtue, people are moved by the sincerity and the spirits descend to bestow blessings; thus 'pig and fish—auspicious' means that even the offering of pig and fish is auspicious."[49] Inner sincerity is beneficial for divining to Heaven and receiving Heaven's response; thus the *Tuan* says: "Zhongfu is beneficial for persevering; it responds to Heaven." As for the second explanation, the river pig is a mammal with spirituality that can predict wind, as Lai Zhide says: "The river pig lives in the great marsh; when wind is about to arise, it first comes out to pay respects—this is natural trust without any forcing. The Tang poem says 'river pig blows waves at night and returns with wind.'"[50] The shortcoming of this explanation is that the Shang-Zhou events occurred in the Yellow River basin, which had no river pigs; King Wen and the Duke of Zhou may never have seen them. The two explanations

differ in perspective: the first focuses on the Heaven-human relationship (human sincerity toward Heaven); the second focuses on human-human or thing-thing relationships (trust between people or 感应 between things), as Professor Li Shangxin says, “things have their responses; trust can be expected.” These two explanations are unified: human-human relationships are based on Heaven-human relationships; trust between people originates from trust between Heaven and humans.

Initial nine: Vigilance—auspicious; having other things brings unrest. If there is sincerity, it is auspicious; otherwise there is unrest. “Yu” (驺虞) is a benevolent beast. The *Shuowen Jiezi* says: “驺虞, white tiger with black patterns, tail longer than body; a benevolent beast that eats only naturally dead meat.” Duan Yucai notes: “驺虞 is a righteous beast; it responds to those with utmost trust and virtue.” The *Xiang* says: “the will has not changed.” Here “will” refers to trust; all lines of this hexagram speak of trust.

Nine in the second place: The crane calls in the shade; its young respond; I have fine wine; I share it with you. The old crane calls in the tree shade; the young crane responds; I have fine wine and share it with you. Sincerity enables connection; benevolence and virtue bring response. The *Xiang* says: “the wish of the center.” Here “wish” also refers to trust. The *Er San Zi* says: “Its young follow it—connection. Fine wine means strong liquor. Not having one cup to share with the multitude… only drinking and eating, rejecting the sweet and dividing the little.”[51] This explains “I share wine with you” from the negative side. The *Xici* speaks of “good words bring response” and “cautious words and actions,” urging people toward goodness. Sincerity and benevolence are both love; the crane has love and can nurture life; when the ruler loves the people like children, the world will be at peace.

Six in the third place: Obtaining the enemy—or drumming or stopping, or weeping or singing. If the ruler has benevolence and virtue, the people will be brave and joyful; if the ruler is tyrannical, the people will be weary and sorrowful. Here “obtaining” (*de*) is interchangeable with “virtue” (*de*): in meaning, “drumming/singing” and “stopping/weeping” are opposites, so “obtaining” and “enemy” should also be opposites; in imagery, as the *Xiang* says “position not appropriate,” the six in the third is a yin line in a yang position, containing two opposing aspects—or benevolence and virtue, or tyranny. Alternatively, if “obtaining” is interpreted as “encountering,” the six in the third cannot embody the hexagram’s theme of trust.

Six in the fourth place: The moon is past full; the horse team is lost—no blame. The moon wanes; the horses are lost. Heaven has trust, so the moon will become full again next month; if a person has sincerity, the horses will still return—no blame. The transmitted *Zhouyi* has “the moon is nearly full”; the silk manuscript *Zhouyi* has “the moon is past full.” “Nearly full” is around the 14th of the month; “past full” is the 16th. Past full, the moon wanes after fullness, consistent with the image of “the horse team is lost.” The horses of the six in the fourth leave those of the six in the third and ascend to the trust of the nine in the fifth; thus the *Xiang* says: “the horse team is lost—cutting off its kind and ascending.” The lost horses are recovered, as in the initial nine of the Kui hexagram: “losing the horse, do not pursue—it returns by itself.” The *Zhouli* says: “For all who obtain and recover goods, people, or six kinds of livestock, deposit

them at court, report to the official; after ten days, announce them—large ones become public, small ones become private property of the common people." Thus, lost horses being recovered has institutional guarantee.

Nine in the fifth place: There is sincerity that binds tightly—no blame. Firmly upholding sincerity—no blame. The nine in the fifth is a yang line in a yang position; the *Xiang* says "position appropriate"; the nine in the fifth is the most honored, so the line statement directly uses "sincerity" to state the hexagram's theme. The silk manuscript *Zhouyi* writes "luan" (挛) as "lun" (论), interchangeable with "lun" (纶), same meaning as "luan": binding or tying with rope. Upholding sincerity should be as firm as binding captives.

Top nine: The sound of the rooster ascends to Heaven; persevering brings misfortune. The rooster's crow rises to the sky; there is no inner sincerity and no external response—hence misfortune. "Han yin" refers to the rooster's crow, not the rooster itself. A person without trust cannot stand; thus the *Xiang* says: "how can it last long?" Unlike the rooster's crowing, the hen incubating eggs has trust. Zhu Zhen considers "fu" (孚) to mean incubation; the hen incubates eggs, and after twenty-one days, the chick is sure to break the shell.[52]

(2) The Zhongfu Hexagram and the Trust Protection Principle

The trust protection principle originates from the principle of good faith. The Latin for good faith is *bona fides*; *bona* means good, *fides* means faith; *bona fides* includes both good and faith. The principle of good faith originated from the ancient Roman belief in the goddess of good faith. Cicero records a case in *On Duties*: Claudius's house obstructed official augury and needed to be demolished within a certain period; Claudius concealed this fact and sold the house to Calpurnius. Old Cato ruled according to the principle of good faith: Claudius knew when selling that the house needed demolition but did not disclose it, concealing a defect in the right, constituting contractual fraud; therefore, he should bear the loss for the buyer.[53] The 1215 Magna Carta already used the principle of good faith to bind the king: the king must observe all clauses of the Magna Carta honestly and without fraud. The principle of good faith applies not only between equal subjects but also between government and individuals. When German courts adjudicated administrative benefit disputes, they introduced the trust protection principle on the basis of good faith: if an administrative act grants benefits to an individual, as long as the beneficiary is in good faith without fraud, false statements, or bribery, and trusts and relies on the administrative act, the government should protect the beneficiary's trust interest by maintaining the act; or, if the act is revoked or terminated, fair compensation should be given. Later, the Federal German Administrative Procedure Act comprehensively stipulated the trust protection principle.[54]

For the Zhongfu hexagram statement, the *Tuan* and *Xiang* explain it respectively from the perspectives of sincerity and benevolence and virtue, showing that Zhongfu includes both trust and goodness—this is consistent with the connotation of the principle of good faith. Zhongfu originated from sacrifice, developing from the Heaven-human relationship to the human-human relationship, similar to the origin and development of the principle of good faith. Between

people, inner sincerity is expressed through words and deeds; if A expresses words and deeds and bestows benevolence and virtue on B, then B will surely respond and repay A with benevolence and virtue. The relationship between A and B can be equal or hierarchical. Subjects trust the ruler's good words and good deeds; the ruler must protect the subjects' trust and uphold previous words and deeds; if it is truly necessary to withdraw previous words and deeds, corresponding remedial measures must be taken. The thought embodied in the Zhongfu hexagram is in common with the trust protection principle.

In the nine in the second line, "the crane calls and its young respond" is the interaction between the old crane and young crane; "I share wine with you" is the interaction between ruler and subjects. Both parent-child and ruler-subject relationships are hierarchical. In such relationships, if the one in the upper position has benevolence and virtue, the one in the lower position will connect; if the one in the lower position has sincerity, the one in the upper position will respond—this thought corresponds to the trust protection principle's "protecting individual trust and upholding previous words and deeds."

In the six in the fourth line, the moon wanes and the horses are lost, yet this is not a bad thing—why? Heaven has trust, so the moon will become full again on the 15th of next month. The horses will be lost and then recovered because people have sincerity: individuals trust the ruler; if horses are lost, the ruler will help the individuals find them. Individuals trust the government; when harmed, the government should provide relief—this thought corresponds to the trust protection principle's "giving fair compensation."

In addition to these two lines, the other four lines also speak of sincerity. The initial nine and six in the third both speak of sincerity from positive and negative aspects: if there is sincerity and benevolence and virtue, it is auspicious and the state is peaceful with the people secure; if there is fraud and tyranny, there is unrest and the people suffer. The nine in the fifth speaks of firmly upholding sincerity with no disaster, while the top nine speaks of losing sincerity bringing misfortune. These thoughts correspond to the premises and effects of the trust protection principle.

V. Conclusion

China has undergone more than two thousand years of Qin-style rule and, since the late Qing, has wavered between traditional culture and Western thought. It is currently building a country, government, and society under the rule of law. Connecting the hexagrams of the *Book of Changes* with modern rule of law thought has enlightening significance for the current construction of the rule of law: a country under the rule of law means all state powers are constrained by law—i.e., all six lines of the Qian hexagram are restricted; a government under the rule of law means administrative power is constrained by law—i.e., the nine in the second and nine in the fifth of Qian are restricted; a society under the rule of law means the people are sincere and friendly with one another, but the state and government should take the lead by not deceiving or tyrannizing—this is the requirement of Zhongfu and Shihe.

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论《周易》乾、噬嗑和中孚诸卦与现代法治思想

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摘要：通过对《周易》乾、噬嗑、中孚诸卦的阐发，以及对现代法治思想的概述，发现《周易》诸卦与现代法治思想相通：乾卦九二之龙现身田间，了解旱情，九五之龙飞上天空，行云布雨，上九之龙恣意妄为，满足私欲，这三爻与正当程序原则之“听取意见”和“反对偏私”是相通的。用九展现六爻之关系，九二之龙和九五之龙积极行动，但是受到其他诸爻限制，不能为首，与依法行政原则之“行政权受到立法权和司法权控制”是相通的。噬嗑卦初九轻罪轻罚、上九重罪重罚以及六二慎用刑讯，是罪刑相称原则的体现，这三爻与比例原则之“手段与目的相称”是相通的。噬嗑卦六三、九四和六五构成坎卦，九四内怀诚信，找到金矢，六三和六五处境相似，遇到箭毒，这三爻与合理性原则之“分辨虚实”、“相关考虑”是相通的。中孚卦主旨是诚信，且侧重上下关系（如君王与臣民），与信赖保护原则之“政府保护个人信赖”是相通的。贯通《周易》诸卦与现代法治思想，对当下法治建设具有启发意义。

关键词：乾；噬嗑；中孚；法治

一、引言

法治是指法律的统治（Rule of Law），政府通过法律治理人民，而政府自身也受法律约束。现代法治思想主要包含以下几项原则：正当程序、依法行政、比例和合理性以及信赖保护。[1]

现代法治思想根源于西方文化传统，发轫于英格兰法律实践。在 1723 年本特利案中，王座法庭认为，听取对方申辩是永恒的上帝之法，因为《创世纪》记载：上帝在惩罚亚当、把他逐出伊甸园之前，还听取了他的申辩。[2]

《周易》广大悉备，有天道、地道和人道，法治当属人道。傅礼白先生根据讼卦认为，在西周时期,我国已经产生法律意义上的诚信原则。他还阐释了中孚卦爻辞的诚信含义。[3] 实际上，中孚不仅意味着诚信，还意味着仁德，如《象》之“议狱缓死”是讲君王施行仁德，济渡罪犯，而非罗马法之诉讼诚信。

至今没有全面贯通法治思想与周易文本的学术尝试，本文基于历代《周易》文献对乾、噬嗑、中孚诸卦的解释，阐发个人对以上诸卦的认识，并考察以上诸卦与现代法治思想的相通之处。

二、乾卦与正当程序原则、依法行政原则

（一）乾卦之阐发

䷀乾，元亨利贞。乾表示刚健，取象龙，比拟君王。《周易》产生于商周之际的黄河流域，先民生活高度依赖农业耕作，干旱是严重的自然灾害。在先民观念中，龙的实

际功用正是行云布雨。君王与龙一样刚健，行使权力是为了保障民众生活。《说卦》曰："乾为君，坤为众。"乾坤关系反映君王与民众的关系，也即权力和权利的关系。

初九，潜龙勿用。龙潜隐在深水里，韬光待时，不可出来行动。君子此时不是消极等待，而是积极谋划。干宝认为："阳处三泉之下，圣德在愚俗之中，此文王在羑里之爻也。"[4] 文王在羑里推演《周易》，为翦商大业作思想准备。

九二，见龙在田，利见大人。干宝指出："二为地上，田在地之表而有人功者也。"[5] 田是人们耕作的土地。龙出现在田间，目的只有一个：了解旱情。了解旱情的必要方式是听取人们意见，帛书《二三子》就是这样理解的："卑嗛，易告也；就民，易遇也。圣人君子之贞也，度民宜之，故曰利见大人。"[6] 君王谦卑地接近民众，利于民众见到君王。

九三，君子终日乾乾，夕惕若厉，无咎。君子白天努力奋斗，夜晚休息、戒慎，没有咎过。对于"夕惕若厉"，王弼之后诸家多释为夜晚忧惧危险，[7] 但是帛书易传多处把"夕惕若厉"解成"终日乾乾"的对立面，例如，《衷》曰："'君子冬日键键'，用也。'夕沂若厉，无咎'，息也。"[8]《二三子》曰："君子之务时，犹驰驱也，故'君子终日键键'。时尽而止之以置身，置身而静，故曰'夕泥若历，无咎'。"[9]《淮南子》与帛书易传一致。[10] 帛书易传和《淮南子》成书于汉武帝罢黜百家之前，可能比后世诸家更加接近孔子原意，尽管孔子解释未必完全贴合周易古经。

九四，或跃在渊，无咎。龙潜隐在深水里，适时跃出水面试飞，没有咎过。对于"或跃在渊"之"或"，王弼之后多释为"疑惑"，[11] 帛书易传和传世易传未见此义。《衷》曰："或跃在渊，隐也，动能静也。恒跃则凶，君子跃以自见，道以自成。君子穷不忘达，安不忘亡，静居而成章，首福又皇。"[12]《文言》曰："上下无常，非为邪也；进退无恒，非离群也。君子进德修业，欲及时也，故无咎。"可见《衷》和《文言》把"或"解释为一种选择、时机。对于"或跃在渊"之"跃"，《文言》释为"自试"，李过释为"未飞而习飞"。[13] 干宝认为，武王举兵孟津、观衅而退是"或跃在渊"的适当事例。[14]

九五，飞龙在天，利见大人。龙飞上天空，利于民众见到大人。九二、九五不仅爻位相应，在爻辞上，后半句完全相同，前半句也密切相关。九二"齐明好道"，九五"齐明而达"，[15] 说明九二、九五之间存在手段与目的、过程与结果的关系。如果九二是考察旱情，那么九五就是行云布雨。胡炳文早就指出这点："《文言》之'云行雨施，天下平也'，则'飞龙在天'之事矣。"[16]《文言》之"同声相应，同气相求，水流湿，火就燥，云从龙，风从虎，本乎天者亲上，本乎地者亲下，则各从其类也"也可视为古人对降雨现象的一种解释。君王要像龙那样泽被天下，故《二三子》曰："君子在上，则民被其利，贤者不蔽。"[17]

上九，亢龙有悔。龙飞得过高，就有悔意。龙在九五完成降雨使命，若再有举动，则不是为了满足人们需求，而是放任自己性子，满足本身欲望，故《衷》曰："亢龙有悔，言其过也；亢龙有悔，高而争也；刚之失也，动而不能静者也。"[18] 君王身处高位，如果脱离民众，无视民众需求，就会失去君位，故《二三子》曰："此言为上而骄下，骄下而

不佁者，未之有也。圣人之立正也，若遁木，俞高俞畏下。”[19]《衷》又曰：“物之上擳而下绝者，不久大立，必多其咎。”[20]《文言》曰：“贵而无位，高而无民，贤人在下位而无辅，是以动而有悔也。”《文言》解释与帛书易传一致。

用九，见群龙无首，吉。综合六爻，出现一群龙，没有为首的，吉利。群龙无首是一种美好的、理想的秩序，是《文言》所说的“天则”和“天下治”。问题是，这种秩序是基于自律还是他律形成的？自律包括让善，如《衷》曰：“群龙无首，文而圣也。让善之谓也。”[21] 自律还包括大公无私，如《说苑》曰：“易曰无首吉，此盖人君之至公也。”[22] 李鼎祚认为用九是三皇五帝之治：“此当三皇五帝礼让之时，垂拱无为，而天下治矣。”[23] 至于他律，《象》曰：“用九天德，不可为首也。”这里“不可”表示限制，这种限制当是来自其他龙甚至牝马。《彖》曰：“首出庶物，万国咸宁。”王弼注为“万国所以宁，各以有其君也”，[24] 是指分封诸侯。高亨解用九为“诸侯分国而治，其中无天子”，[25] 以“无天子”释“无首”。

（二）乾九二、九五及上九与正当程序原则

正当程序原则源自英国法的自然公正原则，包括两项核心要素：当权者必须听取当事人意见，且与待决事项没有利害关系。例如，政府向人民征税，必须得到人民或其代表同意，税收仅仅是为实现人民利益；[26] 政府剥夺个人自由和财产，应当听取个人申辩，且由其同伴根据国法作出裁决；[27] 当权者对个人罚款，不该存在经济上的利益，不得成为自己案件的法官；[28] 当权者剥夺个人职位，应当给予申辩机会。[29] 当权者如果违反以上要求，所作决定就是无效的。自然公正原则演变为正当程序原则，在内涵上不仅增加了说明理由、信息公开等程序要素，还增加了正当程序所要保护的对象，即实体要素。无论如何，听证和反偏私仍是正当程序原则最重要的核心要素。

九二和九五爻辞的前半句讲物象，后半句讲人事。龙若要行云布雨、泽被天下，则要先了解何处干旱，干旱程度如何，因而必须现身田间，实地考察，所以“见龙在田”。在了解旱情之后，龙飞上天空，根据旱情行云布雨，为天下百姓带来福泽，所以“飞龙在天”。雨水充足，百姓丰衣足食，天下就会太平。君王效法“见龙在田”，在听取民意时，要谦卑地接近百姓，向百姓学习和求教，倾听百姓呼声，了解百姓需求。君王效法“飞龙在天”，在顺应民意时，所作所为以百姓利益为唯一目的，而不考虑个人私利。

在九二和九五中，龙在降雨前听取百姓关于旱情的陈述，且降雨仅仅是为满足百姓需求；君王在作出决定前听取民意，所作决定完全为了百姓利益，这种决定是百姓所乐见的。而在上九中，龙没有听取百姓意见，继续行动不是为了百姓利益，而是基于自身欲望，很快就会后悔；君王无视民众需求，谋求自身利益，不久就会失势。因此，九二、九五以及上九所体现的思想与正当程序原则是相通的。

（三）乾用九与依法行政原则

依法行政是德国行政法的基本原则，其内涵是：行政行为必须获得立法授权，并接受司法审查；行政行为不仅要遵守议会制定的法律规则，还应遵守法院确立的法律原则。[30] 法国行政法使用的术语是合法性，而英国行政法使用的术语是越权无效，它们的内涵与依法行政是一致的。[31] 质言之，依法行政就是用立法权和司法权控制行政权。控制权力的思想早在孟德斯鸠《论法的精神》中就得以充分阐述，孟德斯鸠不仅以英格兰政体为模型阐述横向权力关系，还以吕西亚共和国为范例阐述纵向权力关系。[32]

乾卦六根阳爻取象六条龙，比拟六个君王。《衷》曰："龙不侍光而动，无阶而登，圣人与龙相似，何不吉之友？"[33] 龙与君王的相似之处是基于刚健品质而具有强大权能，因而六根阳爻象征六项权力。鉴于乾卦是由下乾和上乾两个经卦相重而成，这六项权力可分为下层和上层两组，每层各有三项权力。在下乾三爻中，每爻的角色各不相同：初九韬光待时，九二听取民意，九三勤勉谨慎。在上乾三爻中，每爻的角色也各不相同：九四适时演练，九五泽被天下，上九过极有悔。初九和九四是进行准备：想出办法、拿出预案；九二和九五是采取行动：听取意见和作出决定；九三和上九是进行反思：坚持正确，承认错误。

进行准备、采取行动以及进行反思，是个人成就事业的三个必要阶段，也是任何组织处理事务的三项基本权力：在公司法中，公司权力分为决策、经营和监督等三项权力；在组织章程中，组织权力分为理事、执行和审查等三项权力；在国家宪法中，国家权力分为立法、行政和司法等三项权力（全国人大掌握立法权力，国务院掌握行政权力，最高法院掌握司法权力）。初九和九四所象征的权力属于决策、理事或立法之类的权力，九二和九五所象征的权力属于经营、执行或行政之类的权力，九三和上九所象征的权力属于监督、审查或司法之类的权力。

如果把乾上、乾下分别视为中央政府和地方政府，那么乾卦六根阳爻不仅展现了横向权力关系，还展现了纵向权力关系。我国最高法院可对各地高级法院之裁判进行二审或再审，说明司法权在纵向上是监督关系。

在分封制下，天子是天下之首，诸侯是各国之首，且天子高于诸侯，是最高元首，因而不符合"群龙无首吉"。在共和制下，各项权力相互控制，没有权力处于最高地位，因而符合"群龙无首吉"。

综合六根阳爻，九二是下卦的中爻，受到初九和九三的限制；九五是上卦的中爻，受到九四和上九的限制；此外，九三敌应于上九，受到上九的限制。在共和制下，依法行政原则是指行政权受立法权和司法权控制；鉴于地方司法权受制于中央司法权，地方行政权最终也受制于中央司法权。因此，用九思想与依法行政原则是相通的。

三、噬嗑卦与比例原则、合理性原则

（一）噬嗑卦之阐发

䷔噬嗑，亨，利用狱。噬嗑卦象有两个视角，其一，颐六四变九四，即成噬嗑，噬嗑为咬合实物，九四是被咬合的实物。易传多有此解，例如，《彖》之“颐中有物，曰噬嗑”，《序卦》之“嗑者，合也”，《杂卦》之“噬嗑，食也”。李鼎祚指明九四是颐中之物。[34] 其二，噬嗑下震上离，表示雷电并合，威明相加。《彖》曰：“刚柔分，动而明，雷电合而章。”以上两个视角的共同指向是“用狱”，前者如王弼曰：“有间与过，啮而合之，所以通也。刑克以通，狱之利也。”[35] 其中 “间与过”是指九四。后者如宋衷曰：“用刑之道，威明相兼。若威而不明，恐致淫滥；明而无威，不能伏物。”[36] 程颐对“用狱”的解释接近现代法治思想：刑狱，是为了探究虚实，并在发现事实和罪过后进行预防和惩罚。[37]

在噬嗑六爻中，初九、上九是讲定罪量刑，如今属于司法机关职权，中四爻讲追查犯罪事实，如今属于警察、检察机关职权。其中九四爻是噬嗑卦的关键，金矢象征犯罪事实，既是中四爻追查的目标，也是初九、上九定罪量刑的基础。

初九，屦校灭趾，无咎。初始之时，罪过轻微，戴上脚镣，掩住脚趾，无法行走，过而能改。“屦校”只是限制行动自由，故象曰：“不行也。”受刑者如果接受教训，及时改正，就没有灾祸，故《系辞》曰：“小惩而大诫，此小人之福也。”

六二，噬肤灭鼻，无咎。啃咬表层嫩肉，用力过猛，鼻子没入肉里，过而能改。从六二到六五，通过啃咬兽肉来说明治狱之道，啃咬兽肉当从表层开始，调查犯罪事实应从讯问嫌犯开始。西周允许刑讯，但禁止用刑过度，故孔颖达曰：“噬过其分，言用刑大深也。”[38]

六三，噬腊肉，遇毒，小吝，无咎。啃咬干肉，遇到箭毒，小有遗憾，没有灾祸。虞翻曰：“三在肤里，故称肉。毒谓矢毒也。”[39] 腊肉是烘干或晒干的兽肉，非常坚硬，为第三爻阳位。猎杀野兽的箭头带毒，箭头穿入动物体内，所经之处染有毒素，毒素为阴爻。

九四，噬干胏，得金矢，利艰贞，吉。啃咬带骨的干肉，发现金属箭头，利于贞问艰难之事，吉利。胏是肉连着骨头，骨头中空，骨髓柔嫩，为第四爻阴位。金矢是打猎时嵌入兽骨的金属箭头，金矢刚直，为阳爻。金矢是啃咬兽肉所发现的目标，比喻调查案件所寻找的事实。陆绩曰：“噬胏虽复艰难，终得申其刚直。”[40] 处理疑难案件，冤屈终得伸张，正义终得实现。《周礼》曰：“以两造禁民讼，入束矢于朝，然后听之。以两剂禁民狱，入钧金，三日乃致于朝，然后听之。”狱讼双方致官之物称为钧金、束矢，当是受到本爻影响。

六五，噬干肉，遇毒，贞厉，无咎。啃咬干肉，遇到箭毒，贞问危难之事，没有灾祸。此为帛书《周易》版本，传世《周易》噬嗑六五：噬干肉，得黄金，贞厉，无咎。帛书版本优于传世版本，理由有三：其一，六五是阴爻在阳位，干肉坚硬，为阳位，矢毒阴险，为阴爻，而黄金与金矢都是金属（即便“黄金”的成分是真金，但金和铜的硬度差别不大），具有坚刚特性，不可为阴爻。其二，两个版本六五断辞都是“无咎”，与六三断

辞一致，因而六五与六三的前提条件应当相似，六三遇毒，六五也遇毒，合乎逻辑，而得黄金与遇毒的意境完全相反，若六五得黄金，则应如九四得金矢之“吉”。其三，按照传世版本，黄金可能是被隐藏在干肉里（藏金于肉的目的是什么？使人误食金粒并非害人的有效方式），也可能是上级赏赐（为什么六五啃咬干肉就得到赏赐？六三啃咬干肉却没有得到赏赐），这两种解释显然都不通。高岛吞象针对甲午海战所筮得的噬嗑六五，根据帛书“遇毒”解释更加合理，日方遭遇的是大清专制暴政，在立宪政体下，人们视专制暴政为制度之毒，是可以理解的。

上九，何校灭耳，凶。积恶太多，罪过极大，戴上枷锁，遮住耳朵，无法受教，可处极刑，因而凶险。“何校灭耳”的严重性在于受刑者不可劝诫，不可预防，故《象》曰：“聪不明也。”罪恶逐渐积累，罪大恶极，不可挽救，只得诛杀，故《系辞》曰：“恶积而不可掩，罪大而不可解。”

（二）噬嗑初九、上九及六二与比例原则

比例思想源远流长，最早出现在罪刑关系中，表现为罪刑相称原则。西塞罗在《论法律》中指出：惩罚应当与罪行相应。[41] 1215 年《大宪章》第 20 条规定轻罪轻罚、重罪重罚。孟德斯鸠在《论法的精神》中论及罪与刑之间的适当比例。[42] 贝卡里亚在《论犯罪与刑罚》中阐述了罪刑相称原则：刑罚与犯罪的相称性，刑罚手段的谦抑性，刑罚目的的正当性。[43] 他还指出，刑讯是对嫌犯科处刑罚。[44] 德国法院把比例思想从刑法领域拓展至警察行政法，直至一般意义上的行政法。在 1958 年药房案中，德国宪法法院审查了政府对个人的不利决定，归纳出比例原则的三要素：其一，政府必须权衡个人权利和公共利益，政府措施越是限制基本权利，就越受到严格限制，即需要存在更加重要的公共利益；其二，政府必须选择对个人自由限制最少的措施；其三，政府措施必须能够实现作为正当目的的公共利益。[45]

在噬嗑卦各爻中，初九和上九是关于定罪量刑，着眼于手段与目的。第一，初九犯罪程度轻微，社会危害性不大，科以拘役，限制人身自由，而上九犯罪程度严重，社会危害性很大，科以极刑，剥夺生命权利。上九与初九相比，犯罪所侵犯的公共利益更加重要，刑罚所限制的个人权利也就更加重要，因而与比例原则第一个要素相通。第二，初九采取最温和的惩罚方式，而没有采取削足之类的肉刑；上九不得已才采取最严厉的惩罚方式，但死刑适用非常审慎。在实现公共利益的前提下，初九和上九尽可能采取更轻的刑罚手段，对个人权利施加更小的限制，与比例原则第二个要素相通。第三，初九通过轻微的刑罚来教育罪犯，使罪犯不再犯罪，达到特殊预防的目的；上九通过严重的刑罚来惩罚罪犯本人，教育他人改邪归正，防止他人重蹈覆辙，达到一般预防的目的。刑罚的最终目的是预防犯罪，初九和上九都实现了预防犯罪的目的，与比例原则第三个要素相通。

尽管中四爻都是关于追查犯罪事实，但是其中六二与其他三爻相比，具有特殊的地位和意义：为了获得犯罪事实，在调查阶段对嫌犯实施刑罚。既然尚未获得犯罪事实，根据近代无罪推定原则，是不能对嫌犯实施刑罚的，但古代侦查技术有限，通过刑罚来逼迫嫌犯供出犯罪事实，即刑讯，是相当普遍的作法。尽管如此，刑讯仍受一定限制，调查者不得过度用刑，这与比例原则的要求是相通的。

（三）噬嗑六三、九四及六五与合理性原则

合理性原则是英国法院在控制政府裁量权的过程中发展起来的。在 1598 年鲁克案中，柯克大法官认为：政府在裁量时必须分辨真假、是非、虚实，不能凭借个人意愿和私人感情。[46] 在 1948 年韦伯内斯伯里案中，格林法官除了提出了狭义不合理，还概括了广义不合理，广义不合理包括不适当目的、相关和不相关考虑，以及没有诚信。[47] 其中，不适当目的就是柯克所说的“个人意愿和私人感情”；相关和不相关考虑是指，政府在作出决定前，应当考虑相关因素，而排除无关因素，换言之，要区别对待不同情况，要相同对待相似情况。

在噬嗑中四爻中，六三、九四和六五构成坎卦。“习坎，有孚，维心亨，行有尚。”结合习坎各爻，可以看出：险在阴爻，信在阳爻，行动有功。故噬嗑六三和六五遭遇危险，九四内怀诚信，获得成功。

九四啃咬带骨干肉，非常困难，但是得到金属箭头。调查者内怀诚信、至公无私，就像金属箭头那样坚刚正直，经过艰难险阻，终于找到犯罪事实，这与合理性原则之“诚信、适当目的”是一致的。

六三和六五都是啃咬干肉，遇到箭毒，没有咎过。虽然五是上位，三处下位，但是身份地位并非总是需要考虑的因素，贝卡里亚主张，对于贵族和平民的刑罚应该是一致的，量刑的标尺是罪犯对社会的危害。[48] 因此，六三和六五处境相似，后果一致，相似情况得到相同处理，这与合理性原则之“相关和不相关考虑”是相通的。

六三和六五遇到箭毒，九四得到金属箭头，箭毒阴险，是阴、虚，金属箭头坚刚正直，是阳、实，调查者小心谨慎，区分箭毒和金属箭头，即是区分阴阳虚实，这与合理性原则之“分辨真假、是非、虚实”是相通的。

四、中孚卦与信赖保护原则

（一）中孚卦之阐发

䷼中孚，豚鱼，吉，利涉大川，利贞。与噬嗑一样，中孚卦象也有两个视角。其一，从各爻关系看，九二、九五都是阳爻在中位，六三、六四都是阴爻在卦内，即《彖》之“柔在内而刚得中”。其二，从上下卦关系看，兑下巽上，风行泽上，君子以仁信感化天下和拯救生民，即《彖》之“孚乃化邦也”以及《象》之“中孚，君子以议狱缓死。”综合这两个视角，就可解释“利涉大川，乘木舟虚”：刳木为舟，方能承人；舟行水上，方能济人。

对于卦辞“豚鱼吉”，彖传释为“信及豚鱼”，历代各家解释不一，其中两种解释比较流行：一是以猪鱼献祭，二是江豚有信。关于第一种解释，猪鱼是薄礼，但祭祀以诚信为要，祭品只是形式，如王引之所云：“豚鱼乃礼之薄者，然苟有中信之德，则人感其诚而神降之福，故曰豚鱼吉，言虽豚鱼之荐亦吉也。”[49] 内怀诚信，利于筮问上天，得到上天回应，故《彖》曰：“中孚以利贞，乃应乎天也。”至于第二种解释，江豚是哺乳动物，有灵性，能预知风，如来知德所云：“豚鱼，生于大泽之中，将生风，则先出拜，乃信之自然，无所勉强者也。《唐诗》云河豚吹浪夜还风，是也。”[50] 这种解释的不足之处是，商周之事发生在黄河流域，而黄河流域没有江豚，文王周公可能未见江豚。以上两种解释的视角不同，第一种着眼于天人关系，是人对上天的诚信，第二种着眼于人人关系或物物关系，是人与人之间的诚信，或物与物之间的感应，如李尚信教授所云“物有其应，信可期”。这两种解释是统一的，人人关系基于天人关系，人人之间的诚信源于天人之间的诚信。

初九，虞吉，有它不燕。如果诚信，就吉利，否则不安。虞是一种仁义之兽。《说文解字》曰：“驺虞也，白虎黑文，尾长于身, 仁兽，食自死之肉。”段玉裁注：“驺虞，义兽也，有至信之德则应之。”《象》曰：“志未变也。”这里的“志”是指孚信，本卦各爻皆言孚信。

九二，鹤鸣在阴，其子和之；我有好爵，吾与尔靡之。老鹤在树荫下鸣叫，小鹤予以回应；我有美酒，我与你们分享它。诚信就能感通，仁德就有应和。《象》曰：“中心愿也。”这里的“愿”也是指孚信。《二三子》曰：“其子随之，通也。好爵者，言耆酒也。弗有一爵与众，……, 唯饮与食，绝甘分少。”[51] 这里从反面解释“我爵尔靡”。《系辞》讲“言善则应”以及“言行谨慎”，是劝人向善。诚信、仁德都是爱，老鹤有爱，就能化育生命；君王爱民如子，天下才会太平。

六三，得敌，或鼓或罢，或泣或歌。如果统治者仁德，人民就会勇敢、快乐；如果统治者暴虐，人民就会疲惫、哀伤。这里“得”通“德”：在义理上，“鼓、歌”与“罢、泣”是相反的，“得”与“敌”也应相反；在象数上，如《象》曰“位不当”，六三爻是阴爻在阳位，包含相互对立的两个方面，或仁德，或暴虐。另外，“得”如果解为“遇到”，六三爻就不能体现孚信的卦旨。

六四，月既望，马匹亡，无咎。月亮亏缺，马匹丢失。上天有信，月亮还会变圆；人若诚信，马匹仍会回来，没有灾祸。传本《周易》作“月几望”，帛书《周易》作“月既望”，几望是每月十四，既望是每月十六。既望，月盈则亏，与“马匹亡”意象一致。马匹丢失，六四之马离开六三之马，上到九五之孚，故《象》曰：“马匹亡，绝类上也。”马匹失而复得，如睽卦初九爻辞：“丧马，勿逐自复。”《周礼》曰：“凡得获货贿、人

民、六畜者，委于朝，告于士，旬而举之，大者公之，小者庶民私之。”可见，马匹失而复得，是有制度保障的。

九五，有孚挛如，无咎。坚守诚信，没有灾祸。九五阳爻在阳位，象曰“位正当”，九五至尊，故用爻辞“孚”直接言明卦旨。“挛”字帛书《周易》作“论”，通“纶”，与“挛”同义：用绳拘系、绑缚。坚守诚信应像绑缚俘虏那样牢固。

上九，翰音登于天，贞凶。公鸡叫声升到天空，内无诚信，外无应和，因而凶险。翰音是指公鸡叫声，而不是公鸡本身。人无信则不立，故《象》曰：“何可长也。”与公鸡打鸣不同，母鸡孵卵是有信的。朱震认为孚就是孵卵，[52] 母鸡孵卵，经过二十一天，小鸡必定破壳而出。

（二）中孚卦与信赖保护原则

信赖保护原则源自诚实信用原则。诚实信用原则的拉丁文是 Bona fides，Bona 是善，fides 是信，Bona fides 包含善和信两个方面。诚实信用原则起源于古罗马信义女神信仰。西塞罗在《论义务》中记载了一个案例：克劳狄乌斯的房屋妨碍官方的占卜活动，需要在一定期限内拆除，克劳狄乌斯隐瞒这个事实，把房屋卖给卡尔普尔尼乌斯，老卡托根据诚实信用原则作出判决：克劳狄乌斯在出售时知道房屋需要拆除，但未作说明，隐瞒权利瑕疵，构成合同欺诈，因此，应当为买主承担损失。[53] 1215 年《大宪章》已用诚实信用原则约束国王：国王必须诚实信用和毫无欺诈地遵守大宪章各个条款。诚实信用原则不仅适用于平等主体之间，也适用于政府与个人之间。德国法院在裁决行政给付争议时，在诚实信用原则基础上引入信赖保护原则：行政行为授予个人利益，只要受益人诚信，没有欺诈、错误陈述或行贿等情况，信任和依赖该行政行为，政府就应保护受益人的信赖利益，维持该行政行为，或者，如果撤销或废止该行政行为，就应给予公平补偿。[54] 其后《联邦德国行政程序法》全面规定了信赖保护原则。

对于中孚卦卦辞，彖传和象传分别从诚信和仁德予以解释，可见中孚包含信与善，这与诚实信用原则的内涵是一致的。中孚起源于祭祀，由天人关系发展到人人关系，与诚实信用原则的起源和发展是相似的。在人与人之间，内心诚信通过言行表现出来，如果甲发出言行，对乙施与仁德，那么乙必定作出回应，对甲也报以仁德。甲乙之间可以是平等关系，也可以是上下关系。臣民信赖君王的善言善行，君王必须保护臣民的信赖，坚守先前的言行；如果确有必要撤回先前的言行，就要采取相应的补救措施。中孚卦体现的这种思想与信赖保护原则是相通的。

在九二爻中，“鹤鸣子和”是老鹤与子鹤之间的互动，“我爵尔靡”是君王和臣民之间的互动，亲子关系和君臣关系都属于上下关系。在这种关系中，如果处上位者仁德，处下位者就感通；处下位者诚信，处上位者就应和，这种思想与信赖保护原则之“保护个人信赖、坚守先前言行”是相通的。

在六四爻中，月亮亏缺，马匹丢失，却不是坏事，其原因何在？上天有信，月亮到下月十五还会变圆。马匹会失而复得，那是因为人有诚信：个人信赖君王，如果遗失马匹，

君王就会帮助个人找回马匹。个人信赖政府，在受到损害时，政府应当予以救济，这种思想与信赖保护原则之“给予公平补偿”是相通的。

除了以上两爻，其他四爻也讲诚信。初九和六三都是从正反两个方面讲诚信，如果诚信、仁德，就吉利、国泰民安；如果欺诈、暴虐，就不安宁、生灵涂炭。九五讲坚守诚信就没灾祸，而上九讲丧失诚信就有凶险。这些思想与信赖保护原则的前提和效果是相通的。

五、结语

中国历经两千多年秦制，自清末以来，一直徘徊于传统文化和西方思想之间。当下正在建设法治国家、法治政府和法治社会。贯通《周易》诸卦与现代法治思想，对当下法治建设具有启发意义：法治国家是指国家所有权力都受法律约束，即乾卦六爻都受限制；法治政府是指行政权力受到法律约束，即乾卦九二和九五受到限制；法治社会是指百姓之间诚信友善，但国家和政府应当率先垂范，不欺骗，不暴虐，此为中孚、噬嗑之要求。

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